



Homeschooling in Florida

A Legal Rights & Resources Guide
for Diverse Families

For Black, Brown, LGBTQ+, and special-needs
homeschool & hybrid-learning families

A SEAT Squad Digital Download · Updated June 2026

Important: This Is Not Legal Advice

This guide is for informational purposes only. It is not legal advice and does not create an attorney-client relationship. Laws change frequently, especially in Florida, where education and civil rights legislation has been evolving rapidly.

Always verify against primary sources before making decisions about your family's education. Key sources are listed throughout this guide and in the resource section at the end. If your situation is complex — especially involving custody, special needs disputes, or LGBTQ+ legal concerns — consider consulting a Florida-licensed education or family law attorney.

This guide reflects laws and programs as of **June 2026**. Verify before relying on any specific detail.

How to Use This Guide

This guide walks you through everything a diverse homeschooling family needs to know to legally homeschool in Florida, access state scholarship funds, navigate special needs services, and understand the legal landscape for LGBTQ+ families. It is organized so you can read it start to finish or jump to the section you need.

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SECTION 1

Your Three Options for Homeschooling in Florida

Florida gives families three legal paths for educating children outside of traditional public school. Each has different requirements, benefits, and access to state funding. Here's how they compare:

	Option 1: Home Education Program	Option 2: Private School Umbrella	Option 3: PEP (Personalized Education Program)
Legal basis	FL Statute 1002.41	FL Statute 1002.01(2) + private school law	FL Statute 1002.394 (HB 1, 2023)
Who you report to	District school superintendent	The private school (not the district)	Step Up For Students (scholarship org)
Notice required	Yes — written notice of intent within 30 days	Enrollment with the private school	Scholarship application through EMA platform
Portfolio required	Yes — log of activities + work samples, kept 2 years	Set by the private school	Yes — required for scholarship compliance
Annual evaluation	Yes — one of 5 evaluation methods, filed with district	Set by the private school	Yes — nationally normed assessment required
State scholarship funds	No (not directly — but see PEP)	Yes — FES-EO for tuition	Yes — ESA funds (~\$8,000/year) for educational expenses

Best for	Families who want maximum autonomy and minimal oversight	Families who want structure, support, and scholarship-funded private school enrollment	Families who want ESA funds for curriculum, tutoring, and materials while directing education themselves
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WHICH OPTION IS RIGHT FOR YOUR FAMILY?

Choose Option 1 (Home Education) if you want the most independence, don't need state scholarship funds, and are comfortable managing your own portfolio and annual evaluation.

Choose Option 2 (Private School Umbrella) if you want the support of a private school structure, want to use FES-EO scholarship funds for tuition, or want someone else handling record-keeping.

Choose Option 3 (PEP) if you want to direct your child's education yourself but also want state funds (~\$8,000/year) to pay for curriculum, tutoring, online classes, and educational materials. This is the newest option and the most relevant for families who want ESA-style funding for homeschooling.

You can switch between options, but be careful about timing and reporting requirements during transitions.

SECTION 2

Option 1: Home Education Program

The Home Education Program is Florida's traditional homeschooling option, established under FL Statute 1002.41. It gives you maximum autonomy with minimal state oversight. Here is the step-by-step process.

Step 1: File Your Notice of Intent

Within **30 days** of starting your home education program, you must send a written notice to the **district school superintendent** of the county where you live.

The notice must:

- Be in writing and signed by the parent
- Include the full legal names, addresses, and birthdates of all children who will be enrolled

The superintendent must accept and register your program immediately upon receipt. The district may not require any additional information or verification unless your child participates in a district program or service.

Important: The notice of intent goes to your *county* school superintendent's office, not the state Department of Education. Find your county superintendent's office at fldoe.org or by searching "[your county] school district superintendent."

Step 2: Maintain a Portfolio

You must maintain a portfolio of records and materials. The portfolio must include:

1. **A log of educational activities** — made contemporaneously with instruction (i.e., as you go, not reconstructed later), designating by title any reading materials used
2. **Samples of any writings, worksheets, workbooks, or creative materials** used or developed by your student

You determine the content of the portfolio. You must preserve it for **2 years** and make it available for inspection by the district superintendent upon **15 days' written notice**. However, the superintendent is not required to inspect it.

PORTFOLIO TIPS FOR DIVERSE FAMILIES

- Your activity log can include culturally relevant lessons, co-op participation, community-based learning, and life skills — all of these count as educational activities
- Include photos of projects, field trips, and hands-on learning alongside worksheets
- Digital portfolios (blog posts, Google Drive folders, apps like Trello or Notion) are acceptable as long as you can produce them on request
- Keep reading material titles in your log — this is specifically required by statute

Step 3: Complete an Annual Evaluation

Each year, you must provide for an annual educational evaluation that documents your student's progress at a level commensurate with their ability. You choose the method. The evaluation must be filed with the district superintendent's office annually.

Five evaluation options (you choose one):

1. **Teacher evaluation** — A Florida-certified teacher reviews the portfolio and discusses progress with your student
2. **Nationally normed achievement test** — Administered by a certified teacher (examples: Iowa Test, Stanford Achievement Test, CAT)

3. **State student assessment** — The same test used by your school district, administered by a certified teacher at a location approved by the district
4. **Psychologist evaluation** — Conducted by a licensed psychologist under s. 490.003(7) or (8)
5. **Mutually agreed alternative** — Any other valid measurement tool agreed upon by you and the district superintendent

If your student does not show adequate progress, the superintendent will notify you in writing. You then have **1 year** to provide remedial instruction. At the end of that year, your student will be reevaluated. Continuation depends on demonstrating progress.

Step 4: File Notice of Termination When You Stop

If you end your home education program (your child graduates, enters school, or you switch to another option), you must file a **written notice of termination** with the district superintendent, along with the annual evaluation, within **30 days** of termination.

What the District Cannot Do

Florida law is clear: **"A school district may not further regulate, exercise control over, or require documentation from parents of home education program students beyond the requirements of this section"** unless the regulation is necessary for participation in a district program (1002.41(13)).

This means the district cannot:

- Require you to use a specific curriculum
- Assign a grade level to your student
- Require your social security number or personal information in any database
- Mandate immunization records (home education students are exempt)
- Inspect your portfolio without giving you 15 days' written notice

- Add requirements beyond what is in the statute

What Your Homeschooled Student CAN Access

Home education students in Florida have the right to participate in:

- **Interscholastic extracurricular activities** (sports, clubs) at their zoned public school (s. 1006.15)
- **Dual enrollment** at Florida colleges and universities (s. 1007.271)
- **Bright Futures Scholarship Program** for college funding (s. 1009.53)
- **Florida College System and state university admission**
- **Career and technical courses** at public schools
- **Industry certifications and statewide assessments**
- **Exceptional Student Education (ESE) services** if your child has a disability and enrolls in public school solely for those services (s. 1002.41(10))
- **Testing and evaluation services** at diagnostic and resource centers, including for students with disabilities

SECTION 3

Option 2: Private School Umbrella

Florida law allows you to enroll your child in a private school that provides oversight for your home education. Under this option, your child is legally a private school student, not a home education student. The private school sets its own requirements for curriculum, record-keeping, and evaluation.

How It Works

- You enroll your child in a Florida private school that offers a homeschool/umbrella program
- The school handles attendance records, reporting, and often curriculum guidance
- You do **not** file a notice of intent with the district superintendent (the private school handles enrollment)
- You do **not** submit an annual evaluation to the district (the school handles evaluation internally)
- You can use **FES-EO scholarship funds** to pay for private school tuition and fees

Why Some Families Choose This Option

- **Less direct interaction with the school district** — the private school is your point of contact
- **Access to scholarship funding** — FES-EO can cover tuition at participating private schools
- **Structure and support** — some umbrella schools provide curriculum packages, teacher support, transcripts, and diplomas
- **Community** — many umbrella schools organize co-ops, field trips, and social events

Things to Watch For

- Each umbrella school has different requirements and different costs. Read the enrollment agreement carefully.
- Some require specific curricula, religious affiliation, or participation in their programs
- Look for umbrella schools that are **inclusive** and welcome diverse families — not all do. See the Resources section for recommendations.
- Transferring from a private school umbrella to a Home Education Program or PEP requires filing a new notice of intent or scholarship application

SECTION 4

Option 3: PEP (Personalized Education Program)

The Personalized Education Program (PEP) is Florida's ESA-style scholarship for families who want to direct their child's education themselves while receiving state funds for educational expenses. It was created by HB 1 (2023), which made school choice universal in Florida. PEP is managed by **Step Up For Students**, a state-approved nonprofit scholarship funding organization.

What PEP Is

PEP provides an **Education Savings Account (ESA)** funded by the state. You use the funds to pay for approved educational expenses for your child. Unlike the Home Education Program, PEP comes with funding. Unlike the Private School Umbrella, you direct the education yourself.

Key distinction: PEP students are NOT enrolled in a public or private school full-time. They are in a parent-directed education program. This makes PEP the bridge between traditional homeschooling and state-funded education choice.

Who Is Eligible

- Any Florida resident student eligible to enroll in K-12 public school
- The student must **not** be enrolled full-time in a public or private school
- No income requirement — all Florida students are eligible (universal, per HB 1)
- Priority is given to students from households at or below 185% of the federal poverty level, then up to 400% of FPL
- Dependent children of active-duty military with PCS orders to Florida are also eligible

How Much Funding

The exact amount varies by year and district, but PEP scholarships are approximately **\$7,500–\$8,500 per student per year**. The funds are deposited into an ESA that you manage through Step Up For Students' **EMA (Education Market Assistant)** platform.

Verify the current year's amount at stepupforstudents.org before applying.

What PEP Funds Can Cover

PEP funds can be used for a wide range of educational expenses, including:

- **Curriculum** — complete courses of study, including digital and physical materials
- **Instructional materials** — textbooks, workbooks, educational supplies, digital downloads
- **Tutoring** — private tutoring and instructional services
- **Part-time instruction** at public or charter schools
- **Florida Virtual School (FLVS)** courses
- **Dual enrollment** at Florida colleges and universities
- **Approved educational services** — therapies, specialized instruction
- **Educational technology** — devices, software (within guidelines)
- **Contracted services** from approved providers

CAN PEP FUNDS BE USED FOR SEAT SQUAD / ETSY DIGITAL DOWNLOADS?

Yes. PEP funds can be used for curriculum, instructional materials, and educational resources — including digital downloads like workbooks, unit studies, and printable resources. You would purchase through the EMA platform's marketplace (MyScholarShop) or submit for reimbursement,

depending on the vendor setup. This is worth verifying with Step Up For Students for specific purchases.

PEP Requirements

- **Annual assessment** — PEP students must take a nationally normed achievement test each year
- **Portfolio** — maintain records of educational activities and expenditures
- **Funds use** — all ESA expenditures must be for approved educational purposes only
- **Account activity** — accounts with no eligible expenditures may be flagged as inactive

How to Apply for PEP

PEP APPLICATION CHECKLIST

- ☐ Create an account on the Step Up For Students EMA platform
- ☐ Complete the PEP scholarship application
- ☐ Provide proof of Florida residency
- ☐ Provide student's birth certificate or age documentation
- ☐ Submit by **April 30** (applications open February 1 each year)
- ☐ Wait for eligibility determination (Eligible, Awarded, or Pending Review)
- ☐ Once awarded, set up your ESA and begin using funds through EMA/MyScholarShop

Deadline is strict: All renewal and new PEP applications must be submitted by **April 30**. After that date, no additional PEP applications are accepted for that school year. Apply early.

Contact Step Up For Students: **1-877-735-7837** | stepupforstudents.org

SECTION 5

All Florida Scholarships & Funding Programs

Florida has one of the most expansive school choice funding systems in the country. All of the following programs are administered through **Step Up For Students** (and some also through **AAA Scholarship Foundation**). Here is what each program covers and who qualifies.

1. Family Empowerment Scholarship — Educational Options (FES-EO)

What it is: Scholarship for private school tuition and fees.

Who qualifies: Any Florida K-12 student (universal eligibility since HB 1, 2023). Priority for households at or below 185% FPL, then up to 400% FPL.

Funding: Approximately \$7,500–\$8,500/year (varies by district).

Best for: Families who want to enroll their child in a private school (including umbrella schools for homeschoolers).

Apply: Through Step Up For Students EMA platform. Applications open February 1.

2. Family Empowerment Scholarship — Unique Abilities (FES-UA)

What it is: ESA-style scholarship for students with specific disabilities. *Formerly known as the Gardiner Scholarship.*

Who qualifies: Students ages 3–22 with one of the following qualifying disabilities (partial list — verify full list at stepupforstudents.org):

- Autism spectrum disorder
- Cerebral palsy
- Down syndrome
- Intellectual disability

- Speech or language impairment
- Orthopedic impairment
- Specific learning disability (including dyslexia, dyscalculia)
- Spina bifida
- Muscular dystrophy
- Williams syndrome
- Phelan-McDermid syndrome
- Prader-Willi syndrome
- Rare diseases (affecting fewer than 200,000 in the US)
- Anaphylaxis
- Hearing impairment (including deafness)
- Visual impairment (including blindness)
- Traumatic brain injury
- Hospital/homebound
- Dual sensory impaired
- Emotional or behavioral disability
- Other health impairment

No income requirement. Students can remain in the program until age 22.

Funding: Varies by disability and grade level. Can exceed \$10,000/year.

What it covers: Private school tuition, therapies, curriculum, tutoring, approved providers, specialized services, transition-to-work programs (ages 17–22).

3. Hope Scholarship

What it is: Scholarship for students who have experienced bullying, harassment, or violence at their public school.

Who qualifies: Any K-12 student who was enrolled in a Florida public school and reported an incident of bullying, harassment, or violence.

Funding: Similar to FES-EO amounts. Can be used for private school tuition or transportation to a different public school.

4. New Worlds Scholarship

What it is: Scholarship for early literacy and reading support.

Who qualifies: Students in grades K–5 who are enrolled in a Florida public school or are PEP/home education students and are reading below grade level.

Funding: Approximately \$500–\$1,200/year. Can be used for reading tutoring, instructional materials, and literacy programs.

5. Transportation Stipend

What it is: Stipend for transporting a student to a public school other than the one they were assigned to.

Funding: Approximately \$750/year.

CAN YOU COMBINE SCHOLARSHIPS?

A student can generally only receive one major scholarship at a time (FES-EO, PEP, or FES-UA — not all three). However, some smaller programs (like New Worlds) may be compatible with certain scholarships. Check with Step Up For Students about your specific combination.

SECTION 6

Special Needs Provisions

Florida has more special-needs education options than most states. If your child has a disability, you have several paths — and the FES-UA scholarship is one of the most generous special-needs ESA programs in the country.

FES-UA (Formerly Gardiner Scholarship)

The FES-UA is the primary scholarship for Florida students with disabilities. It provides an ESA with flexible funds that can be used for therapies, curriculum, tutoring, specialized services, private school tuition, and more. See Section 5 for the full list of qualifying disabilities.

No income requirement. Students can participate until age 22.

IEP Rights for Homeschoolers

If your child has an IEP (Individual Education Plan) from a public school, you should know:

- **You keep the IEP** when you withdraw to homeschool. The IEP document remains valid as a record of your child's needs, even though the public school is no longer required to implement it.
- **The IEP can help you qualify for FES-UA** — it documents your child's disability and needs.
- **You are not required to follow the IEP** at home, but it is a useful guide for what services and supports your child may need.
- **You can request ESE services** from your school district even as a home education student. Under s. 1002.41(10), a school district *may* provide exceptional student education-related services to a home education student

with a disability who enrolls in a public school solely for those services. The district receives funding for providing these services.

Services Available to Homeschooled Students with Disabilities

- **Diagnostic and resource center testing** (s. 1006.03) — available to home education students including those with disabilities
- **ESE-related services** through the public school district (speech therapy, occupational therapy, etc.) — if you enroll your child solely for those services
- **Career and technical courses** at public schools (s. 1002.41(11))
- **Industry certifications and state assessments** (s. 1002.41(12))
- **FES-UA funded services** — therapies, specialized instruction, assistive technology, approved providers
- **Transition-to-work programs** for students ages 17–22 with disabilities (s. 1002.394(16))

PRACTICAL ADVICE FOR SPECIAL-NEEDS FAMILIES

- **Keep all documentation** — diagnosis reports, IEPs, evaluation records, therapy notes. You'll need these for FES-UA eligibility and for tracking progress.
- **Apply for FES-UA early** — the program has more documentation requirements than PEP or FES-EO. Start gathering disability documentation before February.
- **You can use FES-UA funds for therapies** that insurance may not cover — this is one of the most valuable aspects of the program.
- **For neurodivergent learners**, the portfolio requirement can be adapted — include photos, videos, and observations alongside written work. The statute allows you to determine portfolio content.

SECTION 7

LGBTQ+ Family Considerations

Florida's legal landscape for LGBTQ+ families has shifted significantly since 2021. Several laws affect LGBTQ+ parents and students, though homeschooling offers a buffer against many of the school-based restrictions. Here is an honest overview of what you need to know.

What the Laws Say

PARENTAL RIGHTS IN EDUCATION ACT ("DON'T SAY GAY")

Originally passed in 2022, this law prohibited classroom instruction on sexual orientation and gender identity in grades K–3. It was expanded in 2023 to cover all grades K–12, with the restriction that instruction must be "age appropriate" or "developmentally appropriate" as determined by the state.

2024 settlement: A legal settlement in March 2024 clarified that the law only restricts *direct teaching* of gender identity and sexual orientation in classroom instruction. It does *not* prohibit books about LGBTQ+ people, student discussions about LGBTQ+ topics, or teachers responding to student questions about LGBTQ+ identity.

How this affects homeschoolers: This law applies to *public schools*. If you are homeschooling through the Home Education Program or PEP, you choose your own curriculum. You are free to include LGBTQ+ history, diverse family structures, and affirming content in your homeschool. This is one of the key advantages of homeschooling for LGBTQ+ families in Florida.

TRANSGENDER HEALTHCARE RESTRICTIONS

As of 2023, Florida law prohibits access to gender-affirming hormone replacement therapy for transgender minors and creates barriers for adults

(including banning insurance coverage and requiring a physician rather than a nurse practitioner to administer treatment).

What this means for families: If your child is transgender and may need gender-affirming care, this is a significant legal barrier. Some families have sought care out of state. This is an area where consulting a knowledgeable healthcare provider and legal advocate is essential.

BATHROOM / RESTROOM LAW

As of 2023, a Florida law allows for criminal trespass charges against transgender individuals who use a restroom consistent with their gender identity in a public building. This applies to public buildings generally, not just schools.

What this means for families: This can affect transgender family members in public spaces, including public libraries, community centers, and public schools (if your child participates in extracurriculars or ESE services at a public school). Be aware of this when planning activities at public facilities.

TRANSGENDER SPORTS PARTICIPATION

Since 2021, Florida law prohibits transgender women and girls from participating in female sports at the K–12 and college level. If your transgender child wants to participate in public school sports through the home education access provision, this law applies.

ADULT PERFORMANCE / DRAG RESTRICTIONS

2023 legislation restricts "adult live performances" (widely understood to target drag performances) in locations where children might be present. This can affect community events, pride celebrations, and some educational programming. Be aware of this when seeking LGBTQ+ community events for your family.

DEI FUNDING RESTRICTIONS (2026)

As of April 2026, Florida law prohibits state and local governments from promoting or funding diversity, equity, and inclusion efforts, including LGBTQ+ organizations and events. This may reduce the availability of publicly funded LGBTQ+ programs and resources.

What LGBTQ+ Families CAN Do in Florida

- **Marry:** Same-sex marriage has been legal in Florida since January 2015 (and is protected federally by Obergefell v. Hodges).
- **Adopt:** Same-sex couples have full adoption rights in Florida since 2010 (In re: Gill). This includes fostering.
- **Access anti-discrimination protections in many cities:** Approximately 55% of Florida's population lives in cities/counties with local anti-discrimination ordinances covering sexual orientation and gender identity, including Jacksonville, Miami, Tampa, Orlando, St. Petersburg, Tallahassee, and West Palm Beach.
- **Homeschool with affirming curriculum:** Home Education and PEP families choose their own curriculum — you can include LGBTQ+ history, diverse families, and affirming content freely.
- **Use ESA funds for inclusive materials:** PEP and FES-UA funds can be used to purchase inclusive, diverse, and affirming educational materials.
- **Find community:** Several Florida cities (especially Miami, Orlando, Tampa, St. Petersburg) have active LGBTQ+ communities and family-supportive organizations. Lake Worth Beach declared itself an "LGBT sanctuary city" in 2023.

Protective Steps for LGBTQ+ Families

- **Legal documents:** If you are a same-sex couple, ensure both parents have legal parental rights established (second-parent adoption if available, or other legal protections). Florida allows second-parent adoption, but the process can vary by county.

- **Estate planning:** Wills, powers of attorney, and healthcare surrogacy documents are especially important for LGBTQ+ parents in states with shifting legal landscapes. Consult a Florida family law attorney.
- **Healthcare advocacy:** For transgender family members, identify supportive healthcare providers before you need them. Equality Florida and local LGBTQ+ centers can provide referrals.
- **Curriculum privacy:** Your homeschool portfolio is only inspectable by the district with 15 days' written notice, and the district cannot require specific content. You are free to teach inclusive content.
- **Know your city's protections:** If you live in a city with anti-discrimination ordinances (Miami, Orlando, Tampa, etc.), you have additional local protections beyond state law.
- **Travel advisory awareness:** Equality Florida issued a travel advisory in April 2023. While this does not legally restrict travel, it signals the challenging environment. Stay informed about current legislation.

SECTION 8

Inclusive Resources in Florida

Here is a directory of organizations, networks, and resources that serve diverse homeschooling families in Florida. **Verify all contact information and program details before relying on them — organizations change and programs evolve.**

Scholarship & Legal Resources

Resource	What they do	Contact
Step Up For Students	Administers FES-EO, FES-UA, PEP, Hope, and New Worlds scholarships	1-877-735-7837 stepupforstudents.org
AAA Scholarship Foundation	Also administers Florida scholarships (alternative to Step Up)	aaascholarships.org
FL Dept. of Education — Office of Independent Education & Parental Choice	State office overseeing school choice and home education	fldoe.org
HSLDA (Homeschool Legal Defense Association)	Legal support for homeschooling families. Note: HSLDA has historically had a conservative Christian orientation — some diverse families prefer alternatives.	hsllda.org
Florida HS Legal (FPEA)	Florida Parent-Educators Association — statewide homeschool support and advocacy	fpea.com

LGBTQ+ Family Resources

Resource	What they do	Location / Contact
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Equality Florida	Statewide LGBTQ+ advocacy organization. Issues alerts on legislation affecting LGBTQ+ families.	eqfl.org
PFLAG Florida chapters	Family support for LGBTQ+ people and their families. Multiple chapters statewide.	pflag.org
SAVE (Safe Schools South Florida)	LGBTQ+ advocacy and education in South Florida	savesda.org
Orlando Youth Alliance	Support for LGBTQ+ youth in Central Florida	orlandoyouthalliance.org
The Center (Orlando)	LGBTQ+ community center with family programs	thecenterorlando.org
Pride Center Florida (Wilton Manors)	LGBTQ+ community services in South Florida	pridecenterflorida.org

Cultural & Community Resources

Resource	What they do	Location / Contact
African American Homeschoolers Network	National network with Florida presence supporting Black homeschooling families	Search Facebook groups for state/local chapters
Black Homeschoolers of Florida	Statewide support and community for Black homeschooling families	Search Facebook and local groups
Hispanic/Latino homeschool groups	Local groups in Miami, Orlando, Tampa supporting bilingual and culturally responsive homeschooling	Search Facebook for "[city] Hispanic homeschool"
FL Association of Multicultural Educators	Multicultural education resources and advocacy	Search current contact

Special Needs Resources

Resource	What they do	Location / Contact
Florida Department of Health — Children's Medical Services	Services for children with special healthcare needs	floridahealth.gov/programs-and-services/childrens-health
Agency for Persons with Disabilities (APD)	State agency providing services for Floridians with developmental disabilities	apdcares.org
Family Network on Disabilities (FND)	Parent support and advocacy for families of children with disabilities	fndfl.org
Disability Rights Florida	Legal advocacy organization for people with disabilities	disabilityrightsfl.org
Card (Center for Autism & Related Disabilities)	Autism support services through USF, UF, FSU, and other universities	card-usf.fmhi.usf.edu

General Homeschooling Support

Resource	What they do	Location / Contact
Florida Virtual School (FLVS)	Free online K-12 courses for Florida students, including homeschoolers	flvs.net
FPEA (FL Parent-Educators Association)	Statewide homeschool convention, support groups, district directories	fpea.com
Local homeschool co-ops	Search for co-ops in your county — many are inclusive, some are faith-based	Search Facebook: "[your county] homeschool co-op"
4-H Florida	Youth development programs open to homeschoolers	florida4h.org

Finding inclusive co-ops: Many Florida co-ops are faith-based and may not be affirming of LGBTQ+ families. When searching, ask directly about their inclusion policies. Look for co-ops that explicitly state they welcome all families.

Secular/inclusive co-ops exist in most metro areas — search Facebook groups for "secular homeschool [your city]" or "inclusive homeschool [your city]."

SECTION 9

Templates & Checklists

Notice of Intent Template

[Date]

[District School Superintendent's Name]

[County] School District

[Address]

Re: Notice of Intent to Establish and Maintain a Home Education Program

Dear Superintendent [Name],

I am writing to notify you of my intent to establish and maintain a home education program for my child(ren), in accordance with Florida Statute 1002.41. The following information is provided as required:

Parent/Guardian Name: _____

Address: _____

Phone: _____

Email: _____

Child 1: Full legal name: _____

Date of birth: _____

Address (if different): _____

Child 2 (if applicable): Full legal name: _____

Date of birth: _____

Address (if different): _____

I understand my responsibilities under Florida Statute 1002.41, including maintaining a portfolio of records and materials, providing an annual educational evaluation, and filing a notice of termination upon completion of the program.

Sincerely,

_____ (Signature)

_____ (Printed Name)

Portfolio Checklist

☐ Daily/weekly log of educational activities (dated, contemporaneous)

☐ Titles of all reading materials used (recorded in the log)

☐ Samples of writings, worksheets, workbooks

☐ Samples of creative materials (art, projects, photos)

☐ Records of field trips and community-based learning

☐ Records of online/virtual courses (if applicable)

☐ Records of extracurricular activities and co-op participation

☐ Annual evaluation results (filed with district)

☐ Portfolio preserved for 2 years

Notice of Termination Template

[Date]

[District School Superintendent's Name]

[County] School District

[Address]

Re: Notice of Termination of Home Education Program

Dear Superintendent [Name],

I am writing to notify you that I am terminating the home education program for my child(ren), effective [date], in accordance with Florida Statute 1002.41(1)(c). The required annual evaluation is enclosed.

Child(ren): _____

Reason for termination: [Graduated / Enrolled in school / Moving / Other: _____]

The annual educational evaluation for the current year is attached.

Sincerely,

_____ (Signature)

_____ (Printed Name)

Scholarship Application Tracker

Program	Applied?	Date applied	Status	Award amount	Renewal deadline
PEP	☐				April 30
FES-EO	☐				April 30
FES-UA	☐				April 30
Hope Scholarship	☐				
New Worlds	☐				

Annual Evaluation Tracker

School year	Evaluation method	Evaluator name	Date completed	Date filed with district

FOR THE SELLER

Verification Checklist (For You)

This section is for you (the guide creator), not for the buyer. Use this checklist before listing this guide on Etsy to make sure the information is current and accurate.

BEFORE LISTING, VERIFY THESE ITEMS

- ☐ PEP funding amount for current school year (check stepupforstudents.org)
- ☐ FES-EO funding amount for current school year
- ☐ FES-UA qualifying disabilities list (check current statute 1002.394)
- ☐ PEP application deadline (currently April 30 — verify it hasn't changed)
- ☐ Annual evaluation options (verify all 5 are still valid under current statute)
- ☐ Portfolio requirements (verify 2-year retention is still current)
- ☐ LGBTQ+ laws — check for any new legislation or court rulings since June 2026
- ☐ Parental Rights in Education Act — verify 2024 settlement terms are still in effect
- ☐ Transgender healthcare law — check for any legal challenges or changes
- ☐ Bathroom/restroom law — check for legal challenges or enforcement updates
- ☐ DEI funding restriction (April 2026 law) — verify effective date and scope
- ☐ All resource organization contact info (websites, phone numbers still active)
- ☐ Step Up For Students phone number and website still current
- ☐ Update the "as of" date on the cover page to the current month/year
- ☐ Replace [Your SEAT Squad sign-up URL] on the bonus page with your actual URL
- ☐ Generate a real QR code for the bonus page

Update schedule: Florida education law and LGBTQ+ legislation change frequently. Plan to review and update this guide at least **twice per year** (recommended: January before legislative session and August after session ends). Mark the "Updated [Month Year]" on the cover page each time you revise.



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